Australian Venue Co – Assets of The Breakwater, Hillarys and Print Hall, Perth

MN - 85060

Phase 1 Determination

Acquisition may be put into effect

11 November 2026

1. Determination and statement of reasons

Notified acquisition	AVC Operations Pty Limited (**AVC**), a subsidiary of Australian Venue Co. Holdings Ltd, proposes to acquire substantially all of the assets of two licensed venues located in Western Australia, being The Breakwater, Hillarys, and Print Hall, Perth, from Wintime Nominees Pty Ltd and Sunliner Holdings Pty Ltd respectively (together with AVC, the **Parties**) (the **Acquisition**). The Acquisition includes the assignment of the lease for each venue. The business assets of these venues are currently owned and operated by each respective vendor as part of the Night Owl Group.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the C*ompetition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, AVC, operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. AVC's venues are individually branded and are mostly located in inner-city and metro areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. AVC's venues in the Perth CBD and Northbridge area include Durty Nelly's Irish Pub, The Aviary, The Generous Squire, The Globe, Lil's Rooftop & Bar, Market Grounds, An Sibin and The Court. The Breakwater is a licensed venue located at 203/58 Southside Drive, Hillarys WA. The venue is a waterfront destination featuring multiple bars, a restaurant, entertainment facilities (including bowling and shuffleboard) and function rooms. Print Hall is a multi-level licensed venue located at Brookfield Place, 125 St Georges Terrace, Perth WA. The venue is a heritage-listed entertainment precinct featuring multiple bars, a cellar wine bar, branded/themed restaurants and a rooftop terrace.
Overlap between the Parties	The parties overlap in relation to the supply of retail hospitality services in Perth, Western Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the C*ompetition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information regarding The Breakwater and Print Hall, and AVC's other venues in Perth, Western Australia.

	The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The aggregation in retail hospitality venues within the central Perth local area arising from the Acquisition, including both AVC's previous acquisitions over the last three years and AVC's acquisition of Molly's Highgate and Molly's Victoria Park (which the ACCC determined, on the same date as this Determination, may be put into effect), is material. • However, AVC would continue to face competition from alternative retail hospitality venues in the local area surrounding Print Hall and the local area surrounding The Breakwater.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act